



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 11 judgments on Tuesday 22 May 2018 and three judgments and / or decisions on Thursday 24 May 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 22 May 2018

[Hysi v. Albania \(application no. 72361/11\)](#)

[Malo v. Albania \(no. 72359/11\)](#)

[Muca v. Albania \(no. 57456/11\)](#)

[Topi v. Albania \(no. 14816/08\)](#)

All four cases concern criminal proceedings held in the absence of the accused. The accused are four Albanian nationals. All but one are currently serving sentences of between 13 and 25 years' imprisonment.

Three of the applicants were living abroad and only learned of their convictions when being extradited to Albania in 2006/7. These were the applicants: Ardit Hysi, born in 1977, and convicted *in absentia* in 2005 of attempted theft resulting in death; Vladimir Malo, born in 1975, and convicted *in absentia* in 2002 of attempted armed robbery, negligent homicide and premeditated murder; and, Arben Topi, born in 1977, and convicted *in absentia* in 2000 of establishing and participating in an armed gang and attempted intentional murder.

The remaining applicant, Blerim Muca, born in 1970 and living in Tirana, was acquitted in 1999 of premeditated murder. A year later however, he was convicted following a retrial on appeal by his co-accused and the prosecutor. His family informed him in 2005 of his conviction as he had gone abroad following his acquittal at first instance.

Mr Hysi and Mr Malo were subsequently granted leave to appeal out of time, but both the Court of Appeal and the Supreme Court upheld their convictions. Mr Muca applied for leave to appeal out of time, without success. Mr Topi lodged a constitutional appeal against his conviction *in absentia*, which was declared time-barred in 2007. The other three applicants' constitutional appeals were all dismissed.

Relying in particular on Article 6 § 1 (right to a fair trial) of the European Convention on Human Rights, all the applicants allege that the proceedings against them were unfair because they had been held in their absence, without their knowledge and without their ever having waived their right to appear in court. Mr Topi also alleges that the rejection of his constitutional appeal breached his right of access to court.

[Jureša v. Croatia \(no. 24079/11\)](#)

The applicant, Ivana Jureša, is a Croatian national who was born in 1977 and lives in Osijek (Croatia).

The case concerns her complaint that she was denied access to the Supreme Court to appeal in a dispute over inherited property.

A relative of Ms Jureša's began a civil action in court in October 2007 in order to have a share of a property they had both inherited registered in his name. He set the value of the dispute at 110,000 Croatian kunas.

The first-instance court ruled in favour of the relative in April 2008, a decision which was upheld on appeal. In May 2010 the Supreme Court declared an appeal on points of law by Ms Jureša inadmissible on the grounds that the value of the dispute was below the threshold of 100,001 kunas (about 13,300 euros) for such appeals. It found that the dispute involved two separate claims, each worth half of the initial total amount claimed, and therefore both were below the threshold.

Relying on Article 6 § 1 (access to court), Ms Jureša complains about the Supreme Court's decision to declare her appeal on points of law inadmissible.

[United Civil Aviation Trade Union and Csorba v. Hungary \(no. 27585/13\)](#)

The applicants are the United Civil Aviation Trade Union, a trade union registered in Budapest, and Attila Csorba, a Hungarian national who was born in 1970 and lives in Vecsés (Hungary). Mr Csorba is the president of the United Civil Aviation Trade Union.

The case concerns the applicants' complaint about the police banning a demonstration they were planning to hold on the hard shoulder of a road leading to Budapest's main international airport.

The union wanted to hold a two-hour demonstration of between 50 and 100 people in October 2012 in order to protest about planned salary cuts for airport workers. After a meeting with the organisers, the police decided to prohibit the demonstration on the grounds that it would create a danger for traffic and prevent access to the airport.

The police decision was subsequently upheld by a court.

Relying on Article 11 (freedom of assembly and association), the applicants complain that the ban on their demonstration was a disproportionate interference with their rights.

[Gafà v. Malta \(no. 54335/14\)](#)

The applicant, Kenneth Gafà, is a Maltese national who was born in 1972 and is currently serving a 35-year sentence at the Corradino Correctional Facility, Paola (Malta), for the murder of his former partner.

The case concerns his complaint that the financial conditions imposed in granting him bail pending the criminal proceedings against him were excessive.

Mr Gafà was arrested in 2010 and spent the next 32 months in pre-trial detention. He was granted bail in August 2012 subject to, among things, paying a deposit by way of security of 15, 000 euros (EUR) and undertaking a personal guarantee of EUR 25,000. He could not however afford to pay the deposit and filed four applications requesting to have the amount reduced. His applications were all rejected until August 2013 when the domestic court accepted that his mother stand as surety. He brought constitutional redress proceedings to complain about his detention and the 'exorbitant sum' set as a deposit, without success.

Relying on Article 5 § 3 (right to liberty and), Mr Gafà alleges that he was held in custody past the maximum of 20 months allowed by law because he could not afford to pay the bail bond necessary for his release.

[Devinar v. Slovenia \(no. 28621/15\)](#)

The applicant, Verena Devinar, is a Slovenian national who was born in 1959 and lives in Nova Gorica (Slovenia).

The case concerns decisions refusing her application for a disability allowance.

Ms Devinar was a cleaning lady until she developed serious medical problems with her left wrist and right arm and was recognised as having a partial disability in 2006. She subsequently applied to the administrative authorities for a disability pension. However, in-house experts who examined her and her medical records found that she did not have a physical impairment, and her application was dismissed.

Ms Devinar brought judicial proceedings before the domestic courts in 2012 to challenge the administrative decisions, without success. The domestic courts based their dismissal of her claim on the findings of the experts in the prior administrative decisions and on their own observation of Ms Devinar at an oral hearing on her case. Finally, in 2014, her constitutional complaint was not accepted for consideration.

Relying on Article 6 § 1 (right to a fair hearing), Ms Devinar alleges that the domestic courts' decisions in her case were unfair because they had been based on opinions of experts appointed by her opponent in the proceedings, and refused to appoint an independent expert.

[Svetina v. Slovenia \(no. 38059/13\)](#)

The applicant, Matjaž Svetina, is a Slovenian national who was born in 1982 and lives in Koper (Slovenia).

The case concerns the applicant's complaint about the lack of a court order to access his mobile telephone data, evidence which was later allegedly used to convict him of murder.

Mr Svetina was convicted of aggravated murder in September 2009. He appealed against the judgment to the appeal court, the Supreme Court and the Constitutional Court. He argued in particular that the police had illegally accessed his mobile telephone data and that of the victim as they had not obtained court orders to examine the devices.

The Supreme Court ultimately found that the police had examined his telephone without a court order, but decided that the evidence obtained in that way would have come to light anyway in other ways and did not have to be ruled inadmissible.

Mr Svetina complains that the use in the criminal proceedings of the evidence obtained through the examination of his mobile telephone and that of the victim violated his rights under Article 6 § 1 (right to a fair trial).

[M.R. and D.R. v. Ukraine \(no. 63551/13\)](#)

The applicants, M.R. and D.R., father and son, were born in 1958 and 2004 respectively. M.R. is a Czech national who lives in Prague.

The case concerns D.R.'s abduction by his Ukrainian mother following his parents' divorce in 2007.

In October 2009 M.R. brought proceedings in Ukraine against his former wife for the return of his son under the Hague Convention on the Civil Aspects of International Child Abduction. In July 2010 the Ukrainian courts ordered the child's return to his father in the Czech Republic. However, this order has still not been enforced, despite fines imposed by the bailiffs on the mother, and their visits to the child's school and place of residence. Furthermore, the Ukrainian courts have since decided that it was in the child's best interests to continue to live with the mother, given that the child has adapted well to living in Ukraine.

In the meantime, the Czech authorities have granted M.R. sole custody of his son.

Relying on Article 8 (right to respect for private and family life), M.R. complains, on his own behalf and on behalf of his son, that the Ukrainian authorities have failed to ensure the return of his son to the Czech Republic.

[Zelenchuk and Tsytsyura v. Ukraine \(nos. 846/16 and 1075/16\)](#)

The applicants, Sofiya Zelenchuk and Viktor Tsytsyura, are Ukrainian nationals who were born in 1947 and in 1939 and live in Dolyna (a city in the Ivano-Frankivsk Region) and in Ternopil respectively (both in Ukraine).

The case concerns a complaint by the applicants about a State ban on the sale of agricultural land, which they say has violated their property rights as the owners of such plots.

After the fall of the Soviet Union, Ukraine mostly distributed farm land to people who had previously worked on collective farms. It introduced a ban on the sale of such land, known as the “land moratorium”, which was aimed at being temporary.

Both applicants received small plots of farm land by inheritance in 2000 and 2004 respectively and received property certificates in 2007 and 2008. Both plots have been rented out to companies. The plots are subject to the ban on the sale of agricultural land under the Land Code.

The ban was initially set to be in force until 2005, pending the adoption of various land-related laws considered essential for the creation of a well-functioning land sales market infrastructure. However, the ban has been extended several times and is still in force.

Under Article 1 of Protocol No. 1 (protection of property), the applicants complain about the fact that they are not able to sell their land.

Thursday 24 May 2018

[Roj TV A/S v. Denmark \(no. 24683/14\)](#)

The applicant company, Roj TV A/S, is a Danish company and television channel.

The case concerns the company’s being fined and deprived of its licence after the domestic courts found that it promoted the PKK, which is classed as a terrorist organisation.

The domestic courts found the applicant company guilty of promoting terrorism via its support for the PKK in its broadcasts, reporting and interviews. The Copenhagen City Court fined it some 349,000 euros (EUR) in January 2012 while, on appeal, the High Court increased the fine and removed its broadcasting licence in July 2013.

The applicant company complains about its conviction and sentence under Article 10 (freedom of expression).

[Laurent v. France \(no. 28798/13\)](#)

The applicant, Cyril Laurent, is a French national who was born in 1967 and lives in Brest. He is a lawyer.

The case concerns the interception by a police officer of papers that he had handed over to his clients.

On 1 April 2008 Mr Laurent, who was acting as duty lawyer, conducted the defence of two persons who had been formally charged and placed under police escort. After an adversarial hearing with the liberties and detention judge, Mr Laurent, who was wearing his lawyer’s robes, and his two clients were waiting at a table in the lobby of the court. The two defendants asked for his business card. He gave his contact details to one of them on a folded-up slip of paper. A deputy police sergeant asked to see the document. Mr Laurent reproached the police officer for failing to respect the confidentiality of the exchange with his client. The same events took place with regard to the other defendant.

On 8 April 2008 Mr Laurent lodged a complaint with the Brest public prosecutor, alleging a breach of the secrecy of correspondence by a person exercising public authority. It was decided to take no action on his complaint. Mr Laurent filed a criminal complaint, together with an application to join the proceedings as a civil party, with the investigating judge of the Brest *tribunal de grande instance*. On 4 January 2010 the investigating judge issued a discontinuance order, which was upheld by the Rennes Court of Appeal. The Court of Cassation dismissed an appeal on points of law.

The applicant alleges that the interception by the police officer of the papers handed over by him to his clients amounted to a violation of his right to respect for his correspondence as provided for by Article 8 of the Convention.

[N.T.P. and Others v. France \(no. 68862/13\)](#)

The applicants, Ms N.T.P. and her children, are nationals of the Republic of Congo and were born in 1990, 2009, 2010 and 2011 respectively; they live in Plombières-lès-Dijon. The case concerns the reception arrangements for them prior to the examination of their asylum application.

The applicants arrived in France on 18 August 2013 and obtained a postal address from an association. On 21 August 2013 Ms N.T.P. went to the prefecture, where she was given a summons to appear on 26 November 2013 in order to obtain a ruling on whether she was to be granted leave to remain and so that she could lodge her application for asylum.

On 7 October 2013 Ms N.T.P. lodged an urgent application with the Dijon Administrative Court, seeking an order that the authorities be instructed to examine her request for admission as an asylum-seeker, to give her provisional authorisation to remain and, lastly, to indicate to her a reception centre for asylum-seekers. The urgent-applications judge dismissed these requests. Ms N.T.P. lodged an appeal with the *Conseil d'État*, which dismissed her request.

On 15 November 2013 the Court decided not to grant her request, under Rule 39 of its Rules of Court, to direct the authorities to allocate her satisfactory conditions of accommodation.

Following her appointment at the prefecture on 19 November 2013 (an earlier date than originally scheduled), Ms N.T.P. and her children were temporarily rehoused in a hotel, before succeeding in obtaining a place in a reception centre for asylum-seekers, where they currently live.

Relying on Article 3, the applicants allege that their inability to obtain a place in a reception facility between 21 August 2013 and 20 November 2013 on account of the French authorities' refusal to register their asylum appeals exposed them to inhuman and degrading treatment.

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.